

shall be competent for the sheriff or the justices to rescind or vary any such direction in such manner as he or they shall think fit.

Amendment
of 33 & 34
Vict. c. 63.

2. The 'Wages Arrestment Limitation' (Scotland) Act, 1870, shall have effect as if in section two thereof "thirty-five shillings" were substituted for "twenty shillings."

Short title.

3. This Act may be cited as the Small Debt (Scotland) Act, 1924.

CHAPTER 17.

An Act to amend the law relating to Officers of County Courts in England and of District Registries of the High Court in England, and to make further provision with respect to such County Courts and proceedings therein, and for purposes connected therewith. [14th July 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Appoint-
ment, quali-
fication, &c.
of registrars
of county
courts and
provision as
to high
bailiffs.

1.—(1) From and after the commencement of this Act there shall, subject to the provisions of this section, be a registrar for every court who shall be appointed by the Lord Chancellor.

(2) No person shall be qualified to be appointed a registrar unless he is a solicitor of not less than seven years' standing.

(3) The Lord Chancellor may, if he thinks fit, appoint a person to be registrar of two or more courts.

(4) The Lord Chancellor may, if he thinks fit, in the case of a court in a populous district appoint two persons to execute jointly the office of registrar of the court, and

may, in any case where joint registrars are appointed, give directions with respect to the division between them of the duties of the office, and may, as he thinks fit, on the death, resignation or removal of a joint registrar, either appoint another person to be joint registrar in his place, or give directions that the continuing registrar shall act as sole registrar.

(5) Where after the commencement of this Act a vacancy occurs in the office of high-bailiff of a court, no person shall be appointed to that office, and thereafter the registrar of that court shall, by virtue of his office, be the high-bailiff of the court.

(6) Notice of a vacancy occurring in the office of registrar or high-bailiff of a court shall be forthwith given to the Lord Chancellor by the judge of the court.

(7) If in any case the Lord Chancellor thinks it expedient, so to do, having regard to the amount of business to be performed by the registrar of any court as such together with the business (if any) to be performed by him as high-bailiff of the court or as district registrar of the High Court, he may, with the concurrence of the Treasury, direct that the registrar shall not, directly or indirectly, engage in practice as a solicitor or carry on any employment of such a nature as will, in the opinion of the Lord Chancellor, prevent him from properly performing his duties as registrar.

A registrar in whose case a direction is given under this subsection is in this Act referred to as "a whole-time registrar."

(8) The Lord Chancellor shall, before giving any direction under which a person will on appointment as registrar be, or under which a person holding the office of registrar will become, a whole-time registrar, take steps to satisfy himself that the health of the person concerned is satisfactory.

(9) Nothing in this section shall disqualify a registrar appointed before the commencement of this Act from continuing to hold his office.

2. Every registrar and every high-bailiff of a court shall be paid such salary, to be either exclusive of the remuneration of any officers of the court and of any other expenses of his office or not, as the Lord Chancellor may from time to time with the consent of the

Payment of
registrars
and high-
bailiffs.

Treasury direct, and, where the salary is inclusive of any such remuneration or expenses as aforesaid, the Lord Chancellor may, if he thinks fit and subject to the consent of the Treasury, specify what part of that salary is applicable to the payment of the said remuneration or expenses. •

Appoint-
ment of
assistant
registrars,
clerks, and
other offi-
cers of
county
courts.

3.—(1) Subject as hereinafter provided, the Lord Chancellor may, with the concurrence of the Treasury as to numbers and salaries, appoint in connection with any court such assistant registrars, clerks, bailiffs, ushers and messengers, and in connection with any district registry of the High Court such clerks, as he may consider necessary for carrying out the work of the court or of the district registry, respectively, and may from time to time direct what duties shall be performed by those officers respectively, and may, if he thinks fit, remove any such officer from his office.

(2) No person shall be qualified to be appointed an assistant registrar unless he is a solicitor of not less than seven years' standing.

(3) Where there is an assistant registrar, the Lord Chancellor may direct which of the powers and duties of the registrar are to be exercised and performed by the assistant registrar, and the assistant registrar shall, when exercising the powers or performing the duties specified in the direction, be deemed to be the registrar.

(4) Where a registrar or a high-bailiff is paid a salary inclusive of the remuneration of any officers, whether the part of the salary applicable to the payment of that remuneration is specified under the last preceding section of this Act or not, those officers shall, notwithstanding anything in this section, be appointed and be removable by the registrar.

(5) The Lord Chancellor may, subject to the consent of the Treasury as to numbers and salary, appoint as officers in his department such examiners and other officers as he may consider necessary for the purpose of controlling the accounts of county courts.

Retirement
and pensions
of registrars.

4.—(1) A registrar to whom this section applies shall vacate his office at the end of the completed year of service in the course of which he attains the age of seventy-two years :

Provided that, where the Lord Chancellor considers it desirable in the public interest to retain any registrar in his office after he attains the age of seventy-two years, he may, with the approval of the Treasury, from time to time authorise his continuance in office up to such later age, not exceeding seventy-five years, as he thinks fit.

(2) The provisions of the Superannuation Acts, 1834 to 1919 (in this Act referred to as "the Superannuation Acts"), shall apply to registrars to whom this section applies, subject to the following modifications :—

- (a) The superannuation allowance on retirement shall be in accordance with the provisions of the First Schedule to this Act instead of in accordance with the provisions of the Superannuation Acts :
- (b) Section two of the Superannuation Act, 1909 9 Edw. 7. c. 10. (which authorises the grant of a gratuity in case of death), as amended by section two of the Superannuation Act, 1914, section three of the Superannuation Act, 1909 4 & 5 Geo. 5. c. 86. (which provides for the application of the Act to existing male civil servants), and subsection (2) of section six of the Superannuation Act, 1909 (which relates to compensation on abolition of office), shall not apply :
- (c) Section ten of the Superannuation Act, 1859 22 Vict. c. 26. (which prohibits the grant of superannuation allowance to a person under the age of sixty years except upon evidence of infirmity), shall not apply, but a superannuation allowance shall not be granted under this section to a person who is under the age of seventy-two years, unless the Treasury are satisfied on a medical certificate that he is incapable from infirmity of mind or body of discharging the duties of his office, and that the infirmity is likely to be permanent, or unless he has served fifteen years as a registrar and has attained the age of sixty-five years :
- (d) A registrar shall, for the purposes of the Superannuation Acts, be deemed to have served in the permanent civil service of the State not-

withstanding that he has not been admitted to office with a certificate from the Civil Service Commissioners.

(3) This section shall apply to any registrar—

(a) who is a whole-time registrar within the meaning of this Act; or

(b) to whom a salary has been assigned under section forty-five of the principal Act and who gives notice in the prescribed form and within the prescribed period of his desire to accept the provisions of this Act relating to retirement and pensions:

Provided that, if a registrar who was, immediately before his appointment as registrar, an assistant registrar gives notice in the prescribed form and within the prescribed period of his desire to continue subject to the provisions of this Act relating to the retirement and pensions of persons in court service, he shall, for the purposes of retirement and pension, be deemed not to be a registrar to whom this section applies, but to be a person employed in court service.

(4) For the purposes of subsection (2) of this section, the period of service shall be reckoned, in the case of a whole-time registrar, as from the date on which he becomes a whole-time registrar, and, in the case of any other registrar, as from the date on which the order, by virtue of which the salary was assigned to him, came into operation.

(5) The provisions of this section shall apply to the registrars of the district registries of the High Court at Liverpool and Manchester as they apply to registrars of county courts, but in the case of any such district registrar who holds office at the commencement of this Act only if he gives notice in the prescribed form and within the prescribed period of his desire to accept the provisions of this section.

Court service to be pensionable.

5.—(1) Subject to the provisions of this section, employment in court service shall, in the case of a person as respects whom a direction in that behalf is given by the Lord Chancellor with the concurrence of the Treasury, and whether the employment commenced before or after the commencement of this Act, be deemed

to be for all purposes employment in the civil service of the State, and if a certificate has been issued to him by the Civil Service Commissioners, allowances may be granted in his case accordingly under the Superannuation Acts:

Provided that, except in so far as the Treasury may in any case direct, no account shall be taken for the purposes of this section of court service before the issue of the certificate.

(2) Employment in court service shall, in relation to a person in whose case a direction has been given under this section, be deemed to be employment in a public department within the meaning of section four of the Superannuation Act, 1887, as amended by section three of the Superannuation Act, 1914. 50 & 51 Vict. c. 67.

(3) In the case of a person employed in court service who was appointed to his office before the commencement of this Act, any salary or remuneration received by him from any source whatsoever in respect of that office during any period of which account may be taken for the purpose of this section shall, for the purpose of authorising the grant of an allowance or a gratuity under this section, be deemed to have been paid out of moneys provided by Parliament.

(4) Where a person who was employed at the commencement of this Act in court service and in whose case a direction has been given under this section is in consequence of the provisions of this section required, by reason only of his having attained any age, to retire from court service, the Treasury may, if he has been required to devote his whole time to employment in court service and if he had attained the age of fifty-five years on or before the twelfth day of May, nineteen hundred and twenty-three, grant to him by way of compensation such gratuity, not exceeding twice the amount of the salary and emoluments received by him from whatsoever source during his last year of employment, as may seem to them just.

The decision of the Treasury on any question which arises as to the application of this subsection to any person or as to the amount of any gratuity thereunder shall be final.

(5) The provisions of this section shall have effect notwithstanding anything in any contract made between a registrar, a high bailiff, or a district registrar and any other person.

Fees in
workmen's
compensa-
tion pro-
ceedings.
6 Edw. 7.
c. 58.

6.—(1) No court fee shall be payable by the workman in respect of proceedings in a court under the Workmen's Compensation Act, 1906.

(2) Subject to the provisions of the preceding subsection, the words "without fee" in paragraph (9) of the Second Schedule to the said Act and paragraph (13) of the said schedule shall cease to have effect.

Amendment
of s. 59 of
principal
Act.

7.—(1) Section fifty-nine of the principal Act (which relates to ejectment actions) shall have effect as if for the words "one month from the day of service of the summons" there were substituted the words "such time as may be prescribed by rules of court," and as if the following subsection were added thereto—

"(2) The rules of court prescribing the procedure under this section may make provision for authorising any proceedings which have been brought under section one hundred and thirty-eight or one hundred and thirty-nine of this Act, but which ought to have been brought under this section, to be amended and to be continued under this section, and for the procedure on any such amendment."

(2) This section shall come into operation on the first day of October, nineteen hundred and twenty-four.

Provisions
as to
striking out
plaint, &c.

8. A registrar on the application of the defendant, of the hearing of which application seven clear days' notice shall be given by the defendant to the plaintiff, may order a plaint or other proceeding to be struck out on the ground that it discloses no reasonable cause of action, and shall make such order as to costs as he may think proper.

From the decision of the registrar an appeal shall lie to the county court judge in chambers.

Minor
amend-
ments of
principal
Act.

9.—(1) Section four of the principal Act (which provides for the alteration of county court districts) shall be amended as follows:—

(a) The powers conferred by the section shall be exercised by the Lord Chancellor by order instead of by His Majesty by Order in Council:

(b) Where an order is made under the section for the discontinuance of the holding of a court, there shall be power to make provision in the order with respect to proceedings which may have been commenced in that court :

(c) An order made under the section (including any Order in Council made thereunder before the commencement of this Act) may be varied or revoked by a subsequent order made thereunder.

(2) There shall be payable to brokers and appraisers in respect of the matters mentioned in section one hundred and fifty-four of the principal Act (which regulates the sale of goods taken in execution) out of the produce of goods distrained or sold such fees as may with the consent of the Treasury be prescribed instead of the poundage mentioned in that section.

(3) Section one hundred and eighty of the principal Act (which requires all summonses and other process issuing out of a county court to be under the seal of the court) shall have effect as though for the words "all summonses and other process issuing out of the said court" there were substituted the words "all summonses issuing out of the said court and all such other documents so issuing as may be prescribed," and as though for the words "other process purporting" there were substituted the words "such other documents purporting."

(4) Where a deputy has been appointed in the case of the illness or unavoidable absence of any registrar to whom the provisions of this Act relating to the retirement and pension of registrars apply, the Lord Chancellor may, with the consent of the Treasury, allow to the registrar such sums in respect of the remuneration and expenses of the deputy as he shall think fit.

(5) The sections of the principal Act specified in the first column of the Second Schedule to this Act, being enactments under which powers in relation to various matters are vested in the Treasury, shall be amended in the manner shown in the second column of that Schedule.

10. All salaries, allowances and other sums payable under this Act shall be paid out of moneys provided by Parliament. Expenses.

Short title,
interpretation,
extent
and repeal.

11.—(1) This Act may be cited as the County Courts Act, 1924, and shall, except in so far as it amends the Workmen's Compensation Acts, 1906 to 1923, be construed as one with the County Courts Acts, 1888 to 1919, and this Act and the last-mentioned Acts may be cited together as the County Courts Acts, 1888 to 1924.

(2) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“ Court ” means county court :

“ Court service ” means employment as an assistant registrar, or as a clerk, bailiff, usher or messenger in the service of a court, or employment as a clerk in the service of a district registry of the High Court, and includes employment in those capacities simultaneously :

“ Registrar ” means registrar of a court :

51 & 52 Vict.
c. 43.

“ The principal Act ” means the County Courts Act, 1888 :

“ Solicitor ” means solicitor of the Supreme Court :

“ Prescribed ” means prescribed by order made by the Lord Chancellor.

(3) Nothing in this Act shall affect any of the powers, rights, or privileges of the judges of the Mayor's and City of London Court, or the authority of the Mayor, Aldermen and Commons of the City of London in Common Council assembled in relation to that court, or to the judges or officers thereof, or to the fees taken therein, as the said powers, rights, privileges, and authority existed immediately before the commencement of this Act.

(4) This Act extends only to England.

(5) The enactments set out in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 4.

SCALE OF REGISTRARS' SUPERANNUATION ALLOWANCES.

1. An annual allowance not exceeding one-ninth of the last annual salary may be granted after the completion of a period of service of five years.

2. Where the period of service completed exceeds five years, there may be granted an annual allowance not exceeding one-ninth of the last annual salary with an addition of one-thirty-sixth of that salary for each completed year's service in excess of five.

3. The maximum allowance shall be two-thirds of the last annual salary.

4. For the purpose of this Schedule, the annual salary of a registrar who is also a district registrar of the High Court shall include any salary payable in respect of his services as such district registrar.

SECOND SCHEDULE.

Section 9.

AMENDMENTS WITH RESPECT TO POWERS VESTED
IN THE TREASURY UNDER PRINCIPAL ACT.

- S. 165 (Power to make orders as to court fees). For the words "the Treasury from time to time with the concurrence of the Lord Chancellor may make orders" there shall be substituted the words "the Lord Chancellor from time to time with the concurrence of the Treasury may make orders."
- S. 169 (Account of fees and fines). For the words "as often as he shall be required so to do by the Treasury and in such form as the Treasury shall require" there shall be substituted the words "as often as he is required by the Lord Chancellor with the concurrence of the Treasury so to do and in such form as the Lord Chancellor with the like concurrence shall require."

- S. 171 (Audit of registrars' accounts). For the words "at such times as he may be directed by the Treasury" there shall be substituted the words "at such times as he may be directed by the Lord Chancellor."
- S. 172 (Rules as to balances). For the words "the Treasury shall from time to time make such rules" there shall be substituted the words "the Lord Chancellor with the concurrence of the Treasury shall from time to time make such rules."
- S. 183 (Registry of judgments). For the words "under such regulations as the Treasury shall appoint" there shall be substituted the words "under such regulations as the Lord Chancellor shall prescribe," and for the words "such fees shall be charged to persons desirous of inspecting the same as shall be appointed by the Treasury" there shall be substituted the words "such fees shall be charged to persons desirous of inspecting the same as shall be fixed by the Lord Chancellor with the concurrence of the Treasury."

Section 11.

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
31 & 32 Vict. c. 71.	The County Courts Admiralty Jurisdiction Act, 1868.	Section seventeen.
46 & 47 Vict. c. 52.	The Bankruptcy Act, 1883	Subsection (14) of section one hundred and twenty-two.

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	Sections twenty-five, twenty-nine, and thirty, in section thirty-one the words from "Provided that" to the end of the section, in section thirty-three the words "whom the judge shall be empowered to appoint and" and the words from "provided that" to the words "dismissed by the judge," in section thirty-four the words "by the successor of the high bailiff or by the judge" and the words from "and such wages" to the end of the section, sections thirty-six, thirty-seven, thirty-eight and forty-four to forty seven, and in section one hundred and fifty-four the words from "and the brokers" to the end of the section.
3 Edw. 7. c. 42.	The County Courts Act, 1903.	Section six.
9 & 10 Geo. 5 c. 73.	The County Courts Act, 1919.	Section fifteen from the beginning to the words "court and".

CHAPTER 18.

An Act to prevent unreasonable eviction of tenants.
[14th July 1924.]

BE it enacted¹ by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Paragraphs (iv) and (v) of subsection (1) of the section which by section four of the Rent and Mortgage Interest Restrictions Act, 1923, is substituted for section five of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, are hereby repealed as

Amendment
of 13 & 14
Geo. 5. c. 32.
s. 4. ss. (1).
10 & 11
Geo. 5. c. 17.